

SENATE BILL 1708

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to bail.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 11, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Family," when used with reference to a person, includes:

(A) Any person related to such person within the third degree of
consanguinity or affinity; or

(B) Any person living in the same household as such person; and

(2) "Legal guardian" means a person having the legal authority to provide
for the care, supervision, and control of a minor child as established by law or
court order.

(b) An entity, however organized, shall not secure the release of a defendant
unless specifically authorized under this chapter.

(c) An entity, other than the defendant, a member of the defendant's family, the
defendant's legal guardian, the defendant's employer, or a professional bondsman
authorized under § 40-11-124, seeking to secure the release of a defendant must be
approved in accordance with § 40-11-123 for each bond the entity seeks to secure.

(d) An entity, other than the defendant, a member of the defendant's family, the
defendant's legal guardian, the defendant's employer, or a professional bondsman
authorized under § 40-11-124, shall not post security for more than three (3) defendants
in any calendar year, or for a single defendant more than one (1) time per calendar year.

SECTION 2. Tennessee Code Annotated, Section 39-11-715, is amended by deleting "bonding agent" and substituting "proposed surety".

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.